

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH &
BEYOND INC., *Complainant*

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC
#011982) CONSISTING OF EVERGREEN MARINE CORP.
(TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED; ITALIA
MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.;
AND EVERGREEN MARINE (SINGAPORE) PTE. LTD.,
Respondents.

DOCKET NO. 24-12

Served: April 15, 2026

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge.*

SEVENTH AMENDED SCHEDULING ORDER

On April 9, 2026, the parties filed a Joint Status Report and Motion to Extend Deadlines, in which they requested that the deadline to file the Joint Prehearing Statement, objections to exhibits, and motions for confidential treatment be extended by 30 days, to May 18, 2026. Dkt. 65. In support of their motion, the parties report that they have completed the deposition of Complainant's corporate witness and completed expert discovery in accordance with the Sixth Amended Scheduling Order, and that they have been working on preparing a joint statement of material facts consisting of over 450 paragraphs. Given the size of the joint statement and the volume of the accompanying exhibits, the parties state that there is good cause to extend the current deadline.

Motions for enlargement of time may be granted upon a showing of good cause. 46 C.F.R. § 502.102(a). In my previous scheduling order, I noted that the parties did not agree on the best way to proceed with presenting evidence in this case. I ordered the parties to follow the prehearing procedures in Rules 209 and 210, with particular attention to a joint statement of material facts. Given the complex nature of the case and the large number of shipments and evidence at issue, the joint statement will allow me to better ascertain the extent of any genuine issues of material fact and determine whether the case should proceed with briefing or to a hearing. Based on the representations in the joint status report, it appears that the parties are working in good faith towards that end, and I find good cause for an extension. The joint motion is therefore **GRANTED**. The parties are reminded to follow the instructions in the Sixth Amended Scheduling Order and in Rule 210 as they prepare their submissions. I will set a date for the prehearing conference after I receive the joint prehearing statement.

The parties are **ORDERED** to follow this amended schedule:

Joint Prehearing Statement, objections to exhibits, and motions for
confidential treatment are due

May 18, 2026

Prehearing conference

TBD

SO ORDERED.

ALEX
CHINTELLA



Digitally signed by
ALEX CHINTELLA
Date: 2026.04.15
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Alex M. Chintella
Administrative Law Judge